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Petitioner, in propria persona

SUPERIOR COURT OF THE STATE OF CALIFORNIA

COUNTY OF ALAMEDA

BRENDAN NGEHSI NEWANFORBI,

Petitioner,

v.

CALIFORNIA HIGHWAY PATROL; G. SERRATO, in his official capacity as Captain and Commander of CHP Dublin Area,

Respondents.

Case No. 26CV191136

MEMORANDUM OF POINTS AND AUTHORITIES

Hon. Jenna M. Whitman, Dept. 25
Hearing: January 8, 2027, 9:00 a.m., Department 25; Reservation No. 958052306492
Action filed May 29, 2026
Trial: Not set

I. INTRODUCTION

This proceeding concerns CHP's statutory certification decision. On April 9, 2026, Petitioner submitted Form I-918, Supplement B and supporting materials asking CHP to certify his helpfulness concerning unlawful restraint and false imprisonment during a November 1, 2024 encounter. Captain Serrato's April 20 letter rejected qualifying and substantially similar criminal activity. The surviving First Cause of Action asks whether that determination was a lawful exercise of authority under Penal Code section 679.10. It is not a claim that an officer's every unconstitutional act automatically qualifies for certification.

A discrete conflict in CHP's account warrants particular attention. CHP Form 202 describes Petitioner as choosing not to perform the walk-and-turn because he found it difficult and incorporates field-test performance into its custody rationale. The transcript submitted with the certification request, however, records Petitioner expressing willingness to attempt that test and Officer Melano advising against its administration because the freeway shoulder was uneven. (CHP Form 202, AGO 000031–000032; Pet., Ex. 5, approximately 01:10:14–01:10:30.) The original recording—not the litigant's characterization—should control. This conflict bears directly on the reliability of a stated basis for the restraint. The Court must evaluate its materiality alongside the evidence supporting and contesting the asserted lawful authority for custody.

The Court preserved Count One at the pleading stage, expressly recognizing that proof contradicting the officers' claimed impairment observations could support a finding of absent probable cause and an abusive refusal to certify. (Order Sustaining Demurrer in Part, Aug. 29, 2026, pp. 3–4.) Petitioner seeks a decision on that actual question. He principally requests vacatur and reconsideration if material abuse is found, while preserving direct certification only on findings establishing the statutory predicates and a single permissible result.

II. THE REQUEST, DECISION, AND CHP'S VERIFIED ADMISSIONS

CHP admits that its officers approached Petitioner's stationary car on the I-580 shoulder as a welfare check, that the car was not moving when observed, and that the encounter was substantially recorded by a dashcam. (Respondents' Verified Answer, Oct. 12, 2026 ("Answer"), ¶¶ 34–35.) CHP further admits the officers initially questioned a cup's contents and subsequently identified that liquid as urine. (Answer ¶¶ 36, 47.) This is significant because it objectively resolves what that particular cup held; it does not purport to adjudicate the source of every alleged sensory observation.

CHP also admits the officers did not tell Petitioner they smelled alcohol emanating from him or his vehicle, did not tell him his speech was slurred, hesitant, or impaired, and that Petitioner correctly identified Livermore and read highway signs aloud. (Answer ¶¶ 37, 45–46.) These are admissions about the officers' statements and documented conduct, not concessions that the officers could not have perceived an odor or visual impairment signs. CHP acknowledges that the officer's report checked the box for alcoholic beverage presence and that an empty can of Mike's Hard Lemonade was located. (Answer ¶ 47.) The Court can evaluate the probative weight and chronology of these distinct items without conflating the urine cup with the separate empty can.

On April 9, Petitioner transmitted his certification request and incident exhibits. CHP admits the email was sent with exhibits. (Answer ¶ 58; Pet., Exs. 2–3.) Its April 20 letter asserts that a review was conducted, rejects qualifying criminal activity under section 679.10 and federal U-visa law, and also rejects substantially similar activity. (Pet., Ex. 1.) The letter does not identify lack of helpfulness as the reason for refusal. This motion challenges the legality of that qualifying-activity conclusion, not merely the length of the response.

III. THE GOVERNING DUTY AND STANDARD OF REVIEW

California expressly lists false imprisonment and unlawful criminal restraint among the qualifying activities. (Pen. Code, § 679.10, subds. (c)(18)–(19), (d).) Upon request, the certifying official "shall certify victim helpfulness" when a person was the victim of qualifying criminal activity and has been, is being, or is likely to be helpful to its detection, investigation, or prosecution. (Id., subd. (g)(1).) Subdivision (h) establishes a rebuttable helpfulness presumption where the victim has not refused or failed to provide reasonably requested assistance. The statute does not condition certification on an investigation remaining open, charges, arrest of a suspect, prosecution, or conviction. (Id., subd. (k)(1).) Nor may an official deny for reasons forbidden by subdivision (k)(3), including cooperation or refusal to

cooperate in a separate case. These rules are concrete limits on certification discretion, not substitutes for proof of qualifying victimhood.

Under Code of Civil Procedure sections 1085 and 1086, traditional mandate may enforce a duty imposed by law and correct a material abuse of discretion when ordinary remedies are inadequate. A court may require an official to act under the governing law; it ordinarily does not select among genuinely lawful discretionary outcomes. (Common Cause v. Board of Supervisors (1989) 49 Cal.3d 432, 442–443; Saleeby v. State Bar (1985) 39 Cal.3d 547, 560–562.) When only one outcome is lawfully reasonable after facts are established, the writ may compel that result. (California Correctional Supervisors Organization, Inc. v. Department of Corrections (2002) 96 Cal.App.4th 824, 827.) Petitioner's direct personal interest and the absence of another remedy that supplies the requested certification satisfy sections 1085–1086.

IV. THE QUALIFYING CRIME IS UNLAWFUL PERSONAL RESTRAINT; THE RECORD REQUIRES ITS ELEMENTS TO BE DECIDED

False imprisonment is the unlawful violation of another's personal liberty. (Pen. Code, § 236.) Penal Code section 146(a) separately identifies arrest or detention against a person's will by a public officer acting under color of legal authority without lawful authority; to the extent CHP evaluates section 146(a) as a substantially similar criminal restraint offense under section 679.10(d), its actual elements and the alleged conduct must be assessed. Petitioner was handcuffed, involuntarily transported and held in custody. (CHP Form 202, AGO 000031–000033; Answer ¶¶ 38–39; Newanforbi Decl. ¶¶ 2, 6.) That restraint was intentional; the decisive issue is lawful authority for it. The criminal-activity theory does not turn on whether the officers were later charged or prosecuted. (Pen. Code, § 679.10, subd. (k)(1).)

The contemporaneous recording, where properly authenticated and compared with the

officer's report, bears materially on lawful authority. Before any sobriety investigation, the officers approached a stationary vehicle as a welfare inquiry. In the transcript, Officer Melano directed Petitioner to lower the window at approximately 00:56:40, then opened the passenger door three seconds later. The officers' inquiry thereafter developed into detention, tests, handcuffing and custody. (Pet., Ex. 5, 00:56:07–00:59:46, 01:10:14–01:11:33.) Petitioner asks the Court to distinguish lawful welfare assistance from subsequent compulsory restraint and to evaluate the justification existing at each relevant stage. The initial passenger-door opening is not asserted to be an independently enumerated U-visa offense; it is evidence bearing on the encounter's progression and the alleged restraint. The transcript first places the dispatch discussion of parole at approximately 01:11:42, after the earlier opening of the front and rear passenger doors. (Pet., Ex. 5, 00:56:43, 00:59:46, 01:11:42.) Later-acquired knowledge of a search condition cannot itself retrospectively justify a prior search. (People v. Sanders (2003) 31 Cal.4th 318, 330–332.) This chronology is offered for its bearing on the authority asserted at the time, not as a separate cause of action for a vehicle search.

The officers did not observe Petitioner driving. (Answer ¶ 34.) Vehicle Code section 40300.5 permits specified exceptions to the in-presence rule for warrantless misdemeanor DUI arrests, but an arrest based on earlier driving must satisfy the applicable statutory circumstances and reasonable-cause standard. The record identifies a stationary vehicle on a freeway shoulder; it does not, simply by those words, establish roadway obstruction or another statutory exception. (Veh. Code, § 40300.5; see Mercer v. Department of Motor Vehicles (1991) 53 Cal.3d 753, 768–769 [driving requires volitional movement].) The agency must identify the applicable facts supporting lawful authority rather than equate the encounter's DUI label with an answer to the qualifying-restraint allegation.

LIMITED PERSUASIVE SUPPORT FROM THE RELATED FEDERAL SCREENING ORDER

In the related federal action, the court stated at screening that, "[a]ccepting Mr. Newanforbi's alleged facts as true," the complaint supported plausible inferences of false imprisonment based on fabricated evidence and retaliatory denial of certification. (Newanforbi v. Serrato (N.D.Cal. June 29, 2026, No. 4:26-cv-05953-ASK) ECF No. 5, p. 4, lines 17–25.) The court found the complaint sufficient under 28 U.S.C. section 1915(e)(2), not proved on the merits. (Id., p. 5, lines 1–6.)

Petitioner cites that order only as persuasive support for the legal plausibility of the qualifying-crime theory. It does not establish fabrication, unlawful restraint, retaliatory motive, or entitlement to certification. Petitioner seeks neither issue preclusion nor a new retaliation claim. The surviving Count One requires competent evidence and this Court's own findings under its August 29 order; neither court's threshold ruling replaces that proof.

The federal order describes certification as discretionary. (ECF No. 5, p. 3, lines 24–27.) California's conditional "shall certify" requirement must instead be applied to the statutory predicates actually established here. (Pen. Code, § 679.10, subd. (g)(1).) Petitioner therefore relies on the federal order only for the limited point above, not to enlarge the surviving claim or bypass the required victimhood and helpfulness determinations.[1]

1. Penal Code § 679.10(g)(1), official text: https://leginfo.legislature.ca.gov/faces/codes_displaySection.xhtml?lawCode=PEN&sectionNum=679.10.

V. THE MOST PROBATIVE DOCUMENTED DISCREPANCY IS THE WALK-AND-TURN ACCOUNT

CHP Form 202 states: "Walk and Turn: Newanforbi chose not to perform this test and related it was difficult." It later incorporates "poor performance on the FST's" into the arrest analysis. (AGO 000031–000032.) The submitted transcript records Petitioner saying, "I mean I think we can do that" at 01:10:23, followed by Melano's concern that "it's on the side of the freeway and it's like uneven ground. I wouldn't do that one," and his partner's acceptance of that assessment. (Pet., Ex. 5, printed p. 9, 01:10:14–01:10:30; Newanforbi Decl. ¶ 5.)

That sequence is not an effort to relabel an earlier one-leg-stand discussion. It concerns a separate proposed walk-and-turn that the officers, rather than Petitioner, decided not to administer. If the original recording corroborates the exchange, the report materially misattributes the reason for nonperformance and cannot fairly count that nonperformance as Petitioner's failure. The Court should compare the native video, contemporaneous report and witness testimony. In determining whether the resulting certification rejection can stand, a material error in a stated basis for the arrest warrants more than automatic deference to the report's characterization.

VI. A VOLUNTARY PAS REFUSAL DOES NOT SUPPLY AN INFERENCE OF GUILT

The transcript records Meza-Gonzales advising that the roadside preliminary alcohol screening test was not required, Petitioner's refusal at approximately 01:11:15, and the immediate direction to turn around. (Pet., Ex. 5, approximately 01:10:54–01:11:33; Newanforbi Decl. ¶ 6.) Section 23612 expressly requires advice of the right to decline PAS. (See Veh. Code, § 23612, subds. (h)–(i).)

The First District held in People v. Jackson (2010) 189 Cal.App.4th 1461 that it was error to admit refusal of a voluntary PAS as consciousness-of-guilt evidence at a DUI trial, because doing so would undermine the statutory right to refuse. The holding concerned evidentiary use at trial and did not itself decide every possible prearrest reasonable-cause application. Its controlling distinction nonetheless defeats treatment of exercising that legislatively protected choice as a substitute for objective evidence of criminal conduct. The Court should evaluate what information actually supported custody before the refusal, rather than deriving an adverse inference merely from the exercise of the statutory choice. (Id. at pp. 1465–1470; Veh. Code, § 23612(i).)

VII. THE COURT SHOULD ASSESS THE TOTALITY ON THE RECORD ACTUALLY PROVED, WITHOUT RETROSPECTIVE SUBSTITUTES

Petitioner does not ask for a finding of unlawful arrest from the failure to file charges. Nor does he propose retroactive invalidation of prearrest probable cause from a blood draw at 02:38 a.m. The produced laboratory record reports 0.073 ± 0.004 g% ethanol at that later collection time; it does not establish a scientifically defensible earlier concentration absent additional foundation, nor does it decide impairment under Vehicle Code section 23152(a). (AGO 000033–000034.) The subsequent judicial warrant authorized acquisition of evidence at its time of issuance; its existence does not replace analysis of what was known at the earlier arrest.

Similarly, the section 851.6 certificate is an official custody-classification document, relevant to the incident and absence of a filed complaint but not a judicial judgment that the officers lacked probable cause. (Pet., Ex. 7; Pen. Code, §§ 849.5, 851.6.) These limits prevent later events from obscuring the concrete prearrest evidence. They also avoid confusing certification with a criminal prosecution of the officers: Penal Code section 679.10 requires a qualifying-activity finding, not a prior conviction.

CHP's Answer and production are significant because they permit precise tests of the incident account rather than speculation about motive. CHP's statutory evaluation must rest on a sound understanding of the asserted offense, the officers' actual conduct, and materially reliable evidence. A legitimate welfare inquiry or initial DUI investigation is not categorically inconsistent with later criminally unlawful restraint. The Court should adjudicate the question on the actual chronology.

VIII. SERRATO'S QUALIFYING-ACTIVITY DETERMINATION MUST WITHSTAND REVIEW ON ITS MATERIAL FACTUAL BASIS

The April 20 decision denies qualifying and substantially similar activity. (Pet., Ex. 1.) If the factfinder credits the objective recording and determines that materially false report statements supplied the unlawful custody rationale, it may conclude that the agency's refusal to recognize qualifying restraint was an arbitrary or legally erroneous application of section 679.10. Judge Whitman's August 29 order expressly preserved Count One on that premise. (Order, pp. 3–4.) The critical connection is between a proved error bearing on lawful custody and the statutory victimhood decision, not a demand that Serrato write a longer letter.

CHP's Verified Answer supplies admissions bearing on that evaluation: the vehicle was stationary; the officers initially treated the cup as suspect but identified it as urine; they did not verbally disclose an odor allegation or tell Petitioner his speech was impaired; and Petitioner correctly identified his location and read signs. (Answer ¶¶ 34–37, 45–47.) These admissions narrow the factual inquiry and permit the Court to test the officer narrative against the recorded sequence. The additional walk-and-turn comparison provides a specific, independently checkable inconsistency. Its significance is not that one discrepancy automatically proves a crime, but that the certifying decision must not rest on a materially inaccurate account of the confinement.

Petitioner does not assert knowledge of Serrato's undisclosed deliberations. The October 23 production and privilege log establish the existence and dates of produced and withheld materials, not the contents of privileged writings or what Serrato privately considered on April 20. (Newanforbi Decl. ¶¶ 10–12, Exs. A–C.) No finding of legal error is sought merely because the denial letter is brief or an internal memorandum bears a later date. Instead, Petitioner requests relief on affirmative facts the Court finds established and material to the no-qualifying-activity determination.

IX. THE HELPFULNESS REQUIREMENT IS SUPPORTED BY THE SUBMITTED COMPLAINT AND WILLINGNESS TO ASSIST

Petitioner made complaints to CHP and POST, provided a timeline and transcript of the incident, identified the specific officers and supplied incident records with his certification request. He remains willing to supply truthful information and reasonable assistance concerning the alleged unlawful restraint. (Newanforbi Decl. ¶¶ 7–9; Pet., Exs. 2–3.) CHP's Answer denies that an investigating entity requested information from Petitioner. (Answer ¶ 57.) The statutory presumption of helpfulness applies where a victim has not refused or failed to provide reasonably requested assistance. (Pen. Code, § 679.10, subd. (h).)

The relevant assistance concerns detection or investigation of the qualifying activity alleged against the officers. Declining a voluntary PAS during a DUI investigation of Petitioner is not, by itself, a refusal to aid investigation of the alleged unlawful restraint. Nor may a separate-case cooperation decision become a forbidden reason for denying certification. (Id., subd. (k)(3)(H).) Once qualifying victimhood is established, these facts independently support helpfulness and the conditional certification obligation; they do not create qualifying victimhood by themselves.

X. JUDGMENT, REMAND, OR A FOCUSED DETERMINATION OF ESSENTIAL FACTS

The Court may enter judgment granting traditional mandate when the proven facts establish a material abuse of certification discretion. (Code Civ. Proc., §§ 1085–1086; Common Cause, supra, 49 Cal.3d at p. 442.) In the first instance, Petitioner requests that the Court set aside the April 20 refusal and direct CHP's authorized official to reconsider the request in accordance with the Court's actual findings, the enumerated offense definitions, and the nonprosecution/helpfulness provisions of Penal Code section 679.10. A remand would leave genuinely discretionary determinations to CHP and require compliance with the material finding that made the prior decision unlawful.

If the Court instead finds the alleged qualifying offense and helpfulness conclusively established and no reasonable lawful disposition other than certification, it may direct certification itself. (California Correctional Supervisors Organization, supra, 96 Cal.App.4th at p. 827.) Direct certification is sought only on those findings, not simply from submission of the request.

If the Court cannot resolve genuinely material factual disputes on this motion, it should set an evidentiary procedure focused on the disputed grounds for restraint, the accuracy of the report where material to the custody decision, and the statutory criteria. Code of Civil Procedure section 1094 permits noticed-motion judgment when no triable factual issue remains or decision rests solely on an administrative record. Section 1090 governs trial of essential factual issues raised by a return. For informal administrative action subject to traditional mandate, California law permits relevant extra-record evidence where facts are contested. (Western States Petroleum Assn. v. Superior Court (1995) 9 Cal.4th 559, 575–576.) Any presentation remains subject to authentication and the ordinary evidence rules. Petitioner requests the narrowest procedure necessary to reach a final determination on Count One.

XI. CONCLUSION

Petitioner respectfully requests judgment on Count One and a peremptory writ vacating the April 20 denial and directing lawful reconsideration upon a finding of material abuse of discretion or legal error. Alternatively, if all certification conditions are established and discretion permits no other lawful outcome, he requests execution and delivery of Form I-918 Supplement B. If essential factual disputes prevent judgment on this record, he requests a focused evidentiary hearing or trial-setting order. Petitioner seeks no relief on dismissed claims and no adjudication of immigration status.

DATED: _____

/s/ Brendan Ngehsi Newanforbi

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BRENDAN NGEHSI NEWANFORBI

Petitioner, In Pro Per